404973-2025 - Competition

Norway – Pharmaceutical products – 2632a Everolimus and Mykofenolic Acid (enterotablett)
OJ S 118/2025 24/06/2025
Contract or concession notice – standard regime
Supplies

1. Buyer

1.1. Buyer

Official name: SYKEHUSINNKJØP HF
Email: post@sykehusinnkjop.no
Legal type of the buyer: Body governed by public law
Activity of the contracting authority: Health

2. Procedure

2.1. Procedure

Title: 2632a Everolimus and Mykofenolic Acid (enterotablett)
Description: The contracting authority for this competition is Sykehusinnkjøp HF, on behalf of the four regional health authorities in Norway: Helse Sør-Øst RHF, Helse Vest RHF, Helse Midt-Norway RHF and Helse Nord RHF.
Procedure identifier: aaa9a11c-9aed-4e56-937e-5826297c1d03
Previous notice: 208250-2025
Internal identifier: 2025/50837
Type of procedure: Open
The procedure is accelerated: no
Main features of the procedure: The contracting authority shall, on behalf of the four regional health authorities in Norway enter into framework agreements for the procurement of active substances: ATC-kode: L04AH02 - Everolimus ATC-kode: L04AA06 - Mykofenolsyre (enterotablett) See Annex 3 Requirement Specifications and Competition Provisions for comprehensive information.

2.1.1. Purpose

Main nature of the contract: Supplies
Main classification (cpv): 33600000 Pharmaceutical products

2.1.2. Place of performance

Country: Norway
Anywhere in the given country

2.1.3. Value

Estimated value excluding VAT: 128 000 000,00 NOK

2.1.4. General information

Legal basis:
Directive 2014/24/EU
Anskaffelsesforskriften - Open tender contest in accordance with PPR parts I and III.

2.1.6. Grounds for exclusion

Sources of grounds for exclusion: Notice

Corruption: Is the tenderer himself or a person, who is a member of the tenderer's administration, management or supervisory body or has the competence to represent or control or make decisions in such bodies, in the event a enforceable verdict has been convicted of corruption by a verdict handed down not more than five years ago, or a rejection period determined directly in the judgement that still applies? Corruption as defined in Article 3 of the Convention on Combating Corruption, Involving European Communities or European Union Member States (EUT C 195 of 25.6.1997, s. 1), and in Article 2, point 1, in the Council´s framework decision 2003/568/RIA of 22 July 2003 on combating corruption in the private sector (EUT L 192 of 31.7.2003, p. 54). This rejection reason also includes corruption as defined in national law for the contracting authority or supplier.
Fraud: Is the tenderer himself or a person, who is a member of the tenderer's administration, management or supervisory body or has the competence to represent or control or make decisions in such bodies, at the time a legally convicted of fraud has been convicted of fraud by a verdict handed down not more than five years ago, or a rejection period determined directly in the judgement that still applies? Fraud included in Article 1 of the Convention on protection of the Financial Interests of the European Communities (EFT C 316 of 27.11.1995, p. 48).
Money laundering or terrorist financing: Is the tenderer himself or a person, who is a member of the tenderer's administration, management or supervisory body or has the competence to represent or control or make decisions in such bodies, in the event a legal verdict has been convicted of money laundering or financing terrorism by a verdict handed down no more than five years ago, or a rejection period set out directly in the judgement that still applies? Money laundering or financing terrorism As defined in Article 1 of the European Parliament and Council Directive 2005/60/EF of 26 October 2005 on preventive measures against the use of the financial system for money laundering and financing terrorism (EUT L 309 of 25.11.2005, p. 15).
Participation in a criminal organisation: Is the tenderer himself or a person, who is a member of the tenderer's administration, management or supervisory body or has the competence to represent or control or make decisions in such bodies, at the time a legally convicted verdict of participation in a criminal organisation by a verdict handed down no more than five years ago, or a rejection period set out directly in the judgement that still applies? Participation in a criminal organisation as defined in Article 2 of the Council´s framework decision 2008/841/RIA of 24 October 2008 on control of organised crime (EUT L 300 of 11.11.2008, p. 42)
Terrorist offences or offences linked to terrorist activities: Is the tenderer himself or a person, who is a member of the tenderer's administration, management or supervisory body, or has the competence to represent or control or make decisions in such bodies, in the event a legal verdict has been convicted of acts of terrorism or criminal acts connected to terrorist activities by a verdict handed down no more than five years ago, or a rejection period set out directly in the judgement that still applies? Acts of terrorism or criminal acts relating to terrorist activity as defined in Article 1 and 3 of the Council´s framework decision 2002/475/RIA of 13 June 2002 on combating terrorism (EFT L 164, af 22.6.2002, p. 3). This rejection reason also includes incitement to, participation or attempts to commit such actions as included in Article 4 in the mentioned framework decision.
Child labour and including other forms of trafficking in human beings: Is the tenderer himself or a person, who is a member of the tenderer's administration, management or supervisory body or has the competence to represent or control or make decisions in such bodies, in the event a legal verdict has been convicted of child labour and other forms of human trafficking by a verdict handed down no more than five years ago, or a rejection period determined directly in the judgement that still applies? Child labour and other forms of human trafficking as defined in Article 2 of the European Parliament and council directive 2011/36/EU of 5. 1 April 2011 on the

prevention and control of human trafficking and the protection of its victims and for compensation of the Council´s framework decision 2002/629/RIA (EUT L 101 of 15.4.2011, p. 1).
Agreements with other economic operators aimed at distorting competition: Has the tenderer entered into agreement(s) with other tenderers with the intention of turning the competition?
Grave professional misconduct: Has the tenderer committed serious errors in professional practice? If relevant, see the definitions in national law, the relevant notice or procurement documents.
Misrepresentation, withheld information, unable to provide required documents or obtained confidential information of this procedure: Have the tenderer:a) given grossly incorrect information when notifying the information required to verify that there is no basis for rejection, or of the qualification requirements being met,b) failed to provide such information,c) subject to immediately submitting the supporting documents requested by the Contracting Authority, ord) improperly affecting the Contracting Authority's decision process to acquire confidential information that could give this an unlawful advantage in connection with competition, or negligently has given misleading information that can have a significant influence on decisions on rejection, selection or award?
Conflict of interest due to its participation in the procurement procedure: Are tenderers aware of a conflict of interest as stated in national law, the relevant notice or procurement documents?
Direct or indirect involvement in the preparation of this procurement procedure: Has the tenderer or an entity associated with the supplier advised the contracting authority or in another way been involved in the planning of the competition?
Early termination, damages, or other comparable sanctions: Has the tenderer committed significant breaches of contract in connection with the fulfilment of a previous public contract, a previous contract with a public contracting authority or a previous concession contract, where the breach has led to the cancellation of the contract, compensation or other similar sanctions?
Breaching of obligations set under purely national exclusion grounds: The contracting authority shall state that in Norway there are national rejection reasons. These shall be described in the procurement documents. Tenderers must respond to whether they are in one or more of the situations described in the national rejection reasons. Will the purely national rejection reasons, as stated in the relevant notice or in the procurement documents, apply?
Breaching obligation relating to payment of social security contributions: Have tenderers failed to fulfil all their social security obligations in the country where they are established and in their member state, if this is a different country than what he is established in?
Breaching obligation relating to payment of taxes: Has the tenderer not fulfilled his tax and duty obligations in the country in which he is established, and in the contracting authority's member state, if this is a different country than what he is established in?
Business activities are suspended: Specify why, under the mentioned circumstances, one is able to carry out the contract, considering the current national provisions and measures for continuing the business activities? It is not necessary to provide this information if rejection of tenderers made mandatory in accordance with the current national law without the possibility for exceptions.
Bankruptcy: Is the tenderer in a bankruptcy situation? Specify why, under the mentioned circumstances, one is able to carry out the contract, considering the current national provisions and measures for continuing the business activities? It is not necessary to provide this information if rejection of tenderers made mandatory in accordance with the current national law without the possibility for exceptions.
Arrangement with creditors: Is the supplier in a situation where he has been forced debt arrangement? Specify why, under the mentioned circumstances, one is able to carry out the

contract, considering the current national provisions and measures for continuing the business activities? It is not necessary to provide this information if rejection of tenderers made mandatory in accordance with the current national law without the possibility for exceptions.
Insolvency: Is the tenderer in an insolvency situation? Specify why, under the mentioned circumstances, one is able to carry out the contract, considering the current national provisions and measures for continuing the business activities? It is not necessary to provide this information if rejection of tenderers made mandatory in accordance with the current national law without the possibility for exceptions.
Assets being administered by liquidator: Specify why, under the mentioned circumstances, one is able to carry out the contract, considering the current national provisions and measures for continuing the business activities? It is not necessary to provide this information if rejection of tenderers made mandatory in accordance with the current national law without the possibility for exceptions.
Analogous situation like bankruptcy, insolvency or arrangement with creditors under national law: Is the supplier in a situation where he has been forced debt arrangement? Specify why, under the mentioned circumstances, one is able to carry out the contract, considering the current national provisions and measures for continuing the business activities? It is not necessary to provide this information if rejection of tenderers made mandatory in accordance with the current national law without the possibility for exceptions.

5. Lot

5.1. Lot: LOT-0000

Title: 2632a Everolimus and Mykofenolic Acid (enterotablett)
Description: The contracting authority for this competition is Sykehusinnkjøp HF, on behalf of the four regional health authorities in Norway: Helse Sør-Øst RHF, Helse Vest RHF, Helse Midt-Norway RHF and Helse Nord RHF.
Internal identifier: 2025/50837

5.1.1. Purpose

Main nature of the contract: Supplies
Main classification (cpv): 33600000 Pharmaceutical products

5.1.2. Place of performance

Country: Norway
Anywhere in the given country

5.1.3. Estimated duration

Start date: 31/03/2026
Duration end date: 31/03/2028

5.1.5. Value

Estimated value excluding VAT: 128 000 000,00 NOK

5.1.6. General information

Reserved participation:
Participation is not reserved.
Procurement Project not financed with EU Funds.
The procurement is covered by the Government Procurement Agreement (GPA): yes

5.1.9. Selection criteria

Sources of selection criteria: Notice

Criterion: Authorisation or membership of a particular organisation needed for service contracts
Description of selection criterion: Tenderers shall have a valid wholesaler licence or production licence in the EU/EEA.

5.1.10. Award criteria

Criterion:

Type: Price
Description: Price is the only award criteria and reference is given in the Competition Terms and Annex 3 Requirement Specifications.

5.1.11. Procurement documents

Languages in which the procurement documents are officially available: Norwegian
Deadline for requesting additional information: 03/09/2025 10:00:00 (UTC+00:00) Western European Time, GMT
Address of the procurement documents: https://permalink.mercell.com/258634247.aspx

5.1.12. Terms of procurement

Terms of submission:

Electronic submission: Required
Address for submission: https://permalink.mercell.com/258634247.aspx
Languages in which tenders or requests to participate may be submitted: Norwegian, Swedish, Danish
Electronic catalogue: Not allowed
Advanced or qualified electronic signature or seal (as defined in Regulation (EU) No 910/2014) is required
Variants: Not allowed
Deadline for receipt of tenders: 15/09/2025 10:00:00 (UTC+00:00) Western European Time, GMT
Duration during which the tender must remain valid: 6 Months

Information about public opening:

Opening date: 15/09/2025 10:00:00 (UTC+00:00) Western European Time, GMT

Terms of contract:

The execution of the contract must be performed within the framework of sheltered employment programmes: No
Electronic invoicing: Required
Electronic ordering will be used: yes
Electronic payment will be used: yes

5.1.15. Techniques

Framework agreement:

Framework agreement, partly without reopening and partly with reopening of competition
Maximum number of participants: 8

Information about the dynamic purchasing system:

No dynamic purchase system

5.1.16. Further information, mediation and review

Review organisation: Indre og Østre Finnmark tingrett, rettssted Vadsø
Information about review deadlines: The waiting period is in accordance with the regulations.

8. Organisations

8.1. ORG-0001

Official name: SYKEHUSINNKJØP HF
Registration number: 916879067
Postal address: Postboks 40
Town: VADSØ
Postcode: 9811
Country subdivision (NUTS): Finnmark/Finnmárku/Finmarkku (NO073)
Country: Norway
Contact point: Postmottak Sykehusinnkjøp
Email: post@sykehusinnkjop.no
Telephone: +47 78950700
Internet address: http://www.sykehusinnkjop.no
Roles of this organisation:
Buyer
Central purchasing body acquiring supplies and/or services intended for other buyers

8.1. ORG-0002

Official name: Indre og Østre Finnmark tingrett, rettssted Vadsø
Registration number: 926722840
Town: Vadsø
Postcode: 9811
Country subdivision (NUTS): Finnmark/Finnmárku/Finmarkku (NO073)
Country: Norway
Roles of this organisation:
Review organisation

Notice information

Notice identifier/version: 9b1e2e22-5346-47c7-bbce-af9a845d638d - 01
Form type: Competition
Notice type: Contract or concession notice – standard regime
Notice subtype: 16
Notice dispatch date: 20/06/2025 11:34:13 (UTC+00:00) Western European Time, GMT
Notice dispatch date (eSender): 20/06/2025 11:34:29 (UTC+00:00) Western European Time, GMT
Languages in which this notice is officially available: English
Notice publication number: 404973-2025
OJ S issue number: 118/2025
Publication date: 24/06/2025